

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF LOUISIANA
LAFAYETTE DIVISION

CANDI TIZENO : **CIVIL ACTION NO. 6:23-CV-01632**
VERSUS : **JUDGE S. MAURICE HICKS, JR.**
DRIVER PIPELINE CO., AIG : **MAG. JUDGE DAVID J. AYO**
PROPERTY CASUALTY COMPANY
and JOSE T. GONZALES, JR.

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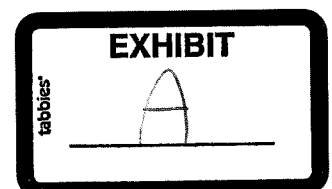
FIRST SUPPLEMENTAL AND AMENDED COMPLAINT

NOW INTO COURT, through undersigned counsel comes plaintiff, **CANDI TIZENO**, who desires to supplement and amend her petition for damages as follows:

1.

Made defendants herein are:

- a) **DRIVER PIPELINE CO., INC.**, believed to be a foreign corporation authorized to do and doing business in the State of Louisiana at all times relevant herein, and was the employer of the driver of the 2019 Ford F-Series truck involved in the subject collision, defendant, **JOSE T. GONZALEZ, JR.**, at the time of the collision in question, and, as such, is liable jointly and severally with one or more defendants for all damages which may be cast in favor of petitioner, plus costs and interest from the date of judicial demand;
- b) **NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA**, believed to be a foreign insurance company authorized to do and doing business in the State of Louisiana at all times relevant herein that, based upon information and belief, maintained one or more policies of primary and/or excess liability insurance insuring **JOSE T. GONZALEZ, JR.** and/or the 2019 Ford F-Series truck being operated by **JOSE T. GONZALEZ, JR** at the time of the subject collision, against liability in the premises and, as such, is liable jointly and severally with one or more defendants for all damages which may be cast in favor of petitioner, plus costs and interest from the date of judicial demand; and
- c) **JOSE T. GONZALEZ, JR.**, believed to be a person of the full age of majority, and who was the owner and/or operator of the 2019 Ford F-Series truck that was involved in the subject collision and, as such, is liable jointly and severally with one or more defendants for all damages which may be cast in favor of petitioner, plus costs and interest from the date of judicial demand.



2.

The defendants, **DRIVER PIPELINE CO., INC.**, **NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA** and **JOSE T. GONZALEZ, JR.**, are liable, jointly and severally, to the petitioner for the harms and losses which she sustained, together with legal interest from the date of judicial demand and costs of these proceedings for the following reasons, to wit:

3.

On or about November 2, 2022, at approximately 4:30 p.m., petitioner, **CANDI TIZENO**, was driving a 2016 Hyundai Sante Fe and was turning left onto Johnston Street from Southcity Parkway under a green turning signal, in Lafayette, Lafayette Parish, Louisiana.

4.

At the same time, defendant, **JOSE T. GONZALEZ, JR.**, was traveling north on Johnston Street and as he approached the intersection with Southcity Parkway he failed to stop at the red traffic control signal and, as a result, collided with **MS. TIZENO's** vehicle as it proceeded through the intersection.

5.

At all times pertinent hereto, petitioner, **CANDI TIZENO**, drove her vehicle safely and with due prudence. **CANDI TIZENO** bears no fault in causing the subject collision.

6.

Petitioner avers that the below described injuries were caused solely by the negligence and fault of defendants, **DRIVER PIPELINE CO., INC.** and **JOSE T. GONZALEZ, JR.**, in the following, non-exclusive, particulars:

- a. In operating a vehicle in violation of the traffic laws of Louisiana;
- b. Failing to maintain control of the vehicle;

- c. Failing to maintain a proper outlook;
- d. Traveling at an unreasonably dangerous speed for the traffic and/or roadway conditions as they existed at the time of the collision;
- e. Failing to do what should have been done to avoid the collision set forth herein;
- f. Careless and/or negligent operation;
- g. Violating any and all applicable laws, rules, regulations, and/or standards including, but not limited to, failure to obey a traffic control signal;
- h. Negligent hiring, training, supervision and/or entrustment; and
- i. All other acts of negligence and/or fault that will be shown at the trial of this matter.

7.

Upon information and belief, at all times pertinent hereto, defendant, **JOSE T. GONZALEZ, JR.**, was working as an employee of defendant, **DRIVER PIPELINE CO., INC.**, and was driving the 2019 Ford F-Series truck with the permission of his employer.

8.

DRIVER PIPELINE CO., INC. is vicariously liable for the actions of **JOSE T. GONZALEZ, JR.** under the doctrine of *Respondeat Superior* and/or Louisiana law.

9.

Directly and solely as a result of the collision in question, **CANDI TIZENO** suffered various injuries and damages including the death of her unborn child; lacerated liver; pulmonary contusion; and injuries to her neck, back, shoulder, chest, and leg; severe depression and anxiety; and she continues to require medical treatment for her injuries and, as a result, is entitled to recover all available damages including, but not limited to:

- a. Physical pain and suffering – past, present, and future;
- b. Mental anguish and/or emotional distress – past, present, and future;
- c. Disability and/or impairment – past, present, and future;

- d. Lost Wages and/or loss of earning capacity - past, present, and future;
- e. Loss of enjoyment of life – past, present, and future;
- f. Medical expenses – past, present, and future; and
- g. Any and all other damages which will be established at the time of trial.

10.

The petitioner herein, **CANDI TIZENO**, is therefore entitled to damages for the items set forth in such amounts as are reasonable in the premises.

11.

Petitioner is informed, believes and therefore alleges that at the time of the collision at issue the defendant, **NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA**, had issued a liability insurance policy to **DRIVER PIPELINE CO., INC.** and under the laws of the State of Louisiana said policy was in full force and effect at the time of the subject collision, and which insurance inures to the benefit of Petitioner under the provisions of the Louisiana Direct Action Statute, L.A. R.S. 22:1269.

12.

Petitioner further alleges on information and belief that under the terms of the said policy, **NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA** obligated itself to pay any and all damages caused to Petitioner as a result of the negligence and/or fault of **DRIVER PIPELINE CO., INC.** and/or **JOSE T. GONZALEZ, JR.** in the collision at issue herein.

13.

Pursuant to the provisions of the Louisiana Code of Civil Procedure, Article 1423, *et sec.*, Petitioner is entitled to a certified copy of all insurance policies issued to and/or otherwise insuring **DRIVER PIPELINE CO., INC.** and/or **JOSE T. GONZALEZ, JR.** for the claims made by

Petitioner herein. Petitioner herein requests a certified copy of any and all such policies of insurance within thirty (30) days of service of the petition upon them.

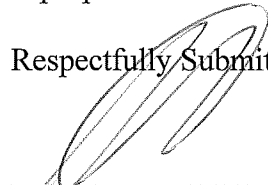
14.

DRIVER PIPELINE CO., INC., NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA and JOSE T. GONZALEZ, JR., are therefore liable, jointly and severally, unto the Petitioner for all damages sustained by Petitioner in said collision.

WHEREFORE, PETITIONER PRAYS that defendants, **DRIVER PIPELINE CO., INC., NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA and JOSE T. GONZALEZ, JR.,** be duly cited to appear and answer this petition and that after due proceedings had and the lapse of all legal delays that there be a judgment herein and in favor of petitioner, **CANDI TIZENO**, and against defendants, **DRIVER PIPELINE CO., INC., NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA and JOSE T. GONZALEZ, JR.,** jointly and severally, for damages in an amount which is reasonable within the premises, together with legal interest thereon from date of judicial demand until paid and for all costs of these proceedings.

PETITIONER FURTHER PRAYS for any and all additional legal equitable relief which this Honorable Court may deem necessary and proper.

Respectfully Submitted,



BRIAN C. COLOMB (Bar No. 25625)

2505 Verot School Road

Lafayette, LA 70508

Telephone: 337-541-6584

Fax: 337-735-8015

brian@getgordon.com

**ATTORNEYS FOR PETITIONER,
CANDI TIZENO**